AfriNuts Export
Odienne
Cote d'Ivoire/Ivory Coast

EQUITY INVESTMENT AGREEMENT – TWO-PHASE CONVERSION MODEL.

18th January 2025

This **Investor Agreement** ("Agreement") is made and entered into as of _____ by and between:

1. **AfriNuts Export** (the "Company"), represented by **Sekou Hakim,** with its principal place of business at Odienne, and
2. _____ (the "Investor"), residing at: _____

The Company and the Investor are collectively called the "Parties."

1. Purpose of the Agreement

This Agreement defines the terms and conditions under which the Investor will fund the Company's Cashew Trading Initiative and the Farming Initiative and how returns will be distributed.

2. Investment Structure

2.1 Total Investment:

The Investor agrees to invest **USD 200,000** in exchange for equity ownership as detailed below.

2.2 Allocation of Investment:

- $60,000 – 50-hectare plantation development
- $20,000 – Strategic storage facility construction and relocation
- $120,000 – Cashew trading operations and working capital

2.3 Funding Disbursement:

- **10% (USD 20,000)** upon execution.
- **45% (USD 90,000)** upon the plantation milestone
- **45% (USD 90,000)** upon completion of the storage facility milestone.

3. Equity Terms

3.1 Equity Ownership: 25% of the Company's common equity is non-dilutable until future financing.

3.2 Dividend Policy: 100% reinvestment, no dividends shall be declared or distributed from **2026 through 2030**.
3.3 Dividend Participation (2031+): 50% of its annual net profits are dividends, and the Investor shall be entitled to receive **25% of all declared dividends**. If processing is delayed beyond 2032, revised dividend terms will be discussed.

4. Key Protections

4.1 Use of Retained Earnings: Not used for a processing center.

4.2 Additional Capital Disclaimer: Future financing may be pursued

4.3 Right of First Refusal: The Investor may maintain 25% ownership in future rounds.

4.4 Exit Participation: The Investor shall receive **25% of the net sale proceeds upon the Company's sale, IPO, or public offering**.

4.5 Drag-Along Rights: The Investor agrees to join the majority-approved sale.

5. Reporting & Governance

5.1 Decision Making: Require Investor approval for debt >$100K, structural changes, or related-party deals.

5.2 Reporting Obligations: Quarterly reports and audited year-end financials.

5.3 Board Observer Rights: One (1) individual may serve as a **non-voting observer** to attend board or advisory meetings.

6. Confidentiality

All business details remain confidential unless legally required or mutually agreed.

7. Dispute and Exit Rights

- Disputes are resolved in Abidjan under Ivorian law and the Islamic Tribunal as needed.
- The investor or company may trigger a buyout in 2031.
- Valuation based on: (i) 2× original investment, (ii) 5× gross revenue, or (iii) independent valuation.
- Deferred payments allowed (no riba or coercion).
- A shariah-compliant advisor may mediate if needed.

- Liquidation clause: In the event of force majeure or business failure, Investor receives a share of the remaining assets after debts.

8. Term and Termination

Covers the whole project period. Early termination requires mutual consent and a fair financial settlement.

9. Entire Agreement & Annexes

This Agreement supersedes all prior discussions and agreements.

- **Exhibit A:** Financial Projection
- **Exhibit B:** Risk Management Plan
- **Exhibit C:** Land Title & Facility Blueprints
- **Exhibit D:** Internal Authorization Letter

Signatures:

AfriNuts Export Co-Funder & CEO
Name: **Sekou Hakim Peters**
Signature: _____
Date: **01/18/2025**

Investor
Name: _____
Signature: _____
Date: _____